

SUPERIOR COURT OF CALIFORNIA
COUNTY OF VENTURA

Tentative Ruling

2025CUBC052190: DAVID ALLEN LOMBARDI vs GENERAL MOTORS LLC

09/22/2026 in Department 44

**Motion for Protective Order OVER THE DEPOSITIONS OF EMPLOYEES JAMES
OAKS AND DAVID MACGILLIS AND STAYING ALL FURTHER DISCOVERY**

Department Rules. Parties and counsel shall follow the Department 44 rules and Zoom protocols, available at <https://www2.ventura.courts.ca.gov/Courtroom/C44>.

Remote Appearances. The Court allows Zoom appearances as a courtesy to parties and counsel. The Court does not accommodate Court Call appearances. **You MUST register by 3:00 p.m. the court day before your hearing or you will be DENIED entry to the hearing:**

ZOOM Registration Link:

<https://ventura-courts-ca.zoom.us/meeting/register/iqN7uhQSQMuoQs-9TQXgEQ>

No advance notice is required to appear in person.

Tentative Rulings. Oral argument should address the tentative decision. To submit on the tentative decision, email courtroom44@ventura.courts.ca.gov before 8:00 a.m. on the hearing date, copying all other parties. Use the subject line “SUBMISSION ON TENTATIVE”, [Case Number], [Case Title] and [Party]. If not all parties submit, the hearing will proceed, and the tentative ruling may change.

The Court may adopt, modify or reject the tentative ruling after hearing. The tentative ruling has no legal effect unless and until adopted by the Court.

Notice of Ruling. Unless stated otherwise at the hearing, if a formal order is required but not signed at the hearing, the prevailing party shall prepare a proposed order and comply with CRC 3.1312 subdivisions (a), (b), (d) and (e). The signed order shall be served on all parties and a proof of service filed with the court. A “notice of ruling” in lieu of this procedure is not authorized.

Motions:

- (1) Plaintiff David Allen Lombardi’s (“Plaintiff”) Continued Motion to Compel the Deposition of James Oaks as to the issue of Sanctions;
- (2) Plaintiff’s Motion to Compel the Deposition of David MacGillis; and
- (3) GM’s Motion for Protective Order Concerning the Depositions of James Oaks and David MacGillis.

Tentative Ruling:

- (1) On August 19, 2026, the court GRANTED in part Plaintiff's Motion to Compel the Deposition of James Oaks and ordered GM to produce Mr. Oaks on or before September 21, 2026. The Court CONTINUED the Motion as to the issue of sanctions sought by Plaintiff in the amount of \$3,060, and set the continued hearing on September 22, 2026. Defendant failed to produce Mr. Oaks by September 21, 2021. The Court thus imposes sanctions payable by GM and counsel for GM jointly, albeit in a reduced amount the Court finds to be reasonable, or \$2,125. Sanctions are due and payable to Plaintiff's counsel on or before October 9, 2026.
- (2) The Court GRANTS Plaintiff's Motion to Compel the Deposition of David MacGillis and for \$3,060 in sanctions in an amount the Court finds to be reasonable, or \$2,125. The depositions were properly noticed and are reasonably calculated to lead to the discovery of admissible evidence. Defendant's objections to the properly noticed depositions on the ground that mutual dates would be circulated were improper. GM must make Mr. MacGillis available for deposition on or before October 9, 2026 on a date and time to be mutually agreed by the parties. Sanctions are payable jointly by GM and GM's counsel and are due to Plaintiff on or before October 9, 2026.
- (3) The Court DENIES GM's Motion for Protective Order as to the Depositions of David MacGillis and James Oaks. First, GM noticed the motion for protective order to be heard *after* the hearing on Plaintiff's noticed motion to compel Mr. Oaks deposition and did not seek to advance the hearing on that motion before Plaintiff's motion came on for hearing. In addition, GM put forward the same arguments in its oppositions to Plaintiff's motions to compel as were set forth in its motion for protective order. The court is not persuaded by General Motors that "the only remaining factual issue in dispute is the proper calculation under Civil Code §1793.2 subsection (d)(2)(C) of the deduction to the amount to be paid by GM that is attributable to Plaintiff's use of the vehicle prior to the time Plaintiff first delivered the vehicle for repair of the alleged nonconformity." (Reply at 2:17-20.) The sufficiency or insufficiency of Plaintiff's notice under section 871.24 of the Code of Civil Procedure – as relates to civil penalties - has not been established. Additionally, the discovery at issue may be relevant to the second cause of action for breach of implied warranty, beyond the scope of General Motors' contention that civil penalties are not available under the cause of action. General Motors does not otherwise dispute that Mr. MacGillis might have information that is germane to the dispute.

The Court OVERRULES Plaintiff's Objections dated September 8, 2026.

As to Plaintiff's objections dated September 17, 2026, the Court OVERRULES objections 1 and 4, and SUSTAINS objections 2 and 3.

Plaintiff shall give notice.